

4.3 Lodging a declaration

4.3.1 General

Union legislation requires that an export or re-export declaration containing specific items relating to safety and security requirements must be lodged in advance of an export movement. The exact time of lodgement depends on the nature of the cargo and how the export is being dealt with (see paragraph 4.4).

The declaration must be lodged electronically. In addition, it must contain the particulars laid down for such declarations in the revised Annex B of the UCC DA and the EU Customs Data Model (EUCDM).

(Article 6 of the UCC and Article 2 of the UCC DA refer)

AES changes: Declarations lodged in AES must contain datasets aligned to the Revised Annex B as depicted in [EU Customs Data Model 6.2](#) Data Elements will replace SAD boxes in AES. More information on AES can be found [here](#).

4.3.2 Person lodging the customs declaration

The exporter shall be considered the person on whose behalf the export declaration is being lodged and they shall be established in the customs territory of the Union. There are various possible scenarios in which the person who is responsible, or is allowed to, lodges the customs declaration:

- (a) The exporter or holder of the outward processing procedure, in the case of the export and outward processing procedures respectively.
- (b) The principal in the case of the transit procedure.
- (c) The person re-exporting non-Union goods after use of a customs procedure with economic impact (customs warehousing, inward processing, temporary admission, processing under customs control).

Any of the persons above may be allowed to use a representative, who may be direct or indirect as appropriate.

(Articles 18 and 170 of the UCC and Article 1(19) UCC DA refer).

4.3.3 Office responsible for receipt of declaration

Article 221 of the UCC IA lays down which customs office of export has the responsibility for receiving export declarations.

In general, the export declaration must be lodged via AES to the customs office responsible for supervising the place where the exporter is established or "where the goods are packed or loaded